

Your Ref:
Our Ref: 26/01309/FUL



Mr Marius Mihaila
c/o Mr James Dyson
Duncan House
Burnhill Road
Beckenham
BR3 3LA

22nd June 2026

DECISION NOTICE

RE: REFUSAL FOR PERMISSION FOR DEVELOPMENT

Dear Mr Marius Mihaila

TOWN AND COUNTRY PLANNING ACT 1990.

The London Borough of Lambeth hereby refuses to permit under the above mentioned Acts and associated orders the development referred to below as shown on the plan(s) if submitted.

Your attention is drawn to the Statement of Applicant's Rights attached.

Application Number: 26/01309/FUL **Date of Application:** 27.04.2026 **Date of Decision:** 22.06.2026

Proposed Development At: 11 Josephine Avenue London SW2 2JU

For: Replacement of existing windows and doors with double glazed timber windows and doors.

Submitted Plans

Location Plan reference PP-14872121v1;11233-PR-11JA-ZZ-DR-A-PL201;11233-PR-11JA-ZZ-DR-A-PL401;11233-PR-11JA-ZZ-DR-A-PL202;11233-PR-11JA-ZZ-DR-A-PL402;KING7_SB_ISG_1TO2;Design, Access & Planning Statement Rev P2 (29/04/2025)

Reasons for Refusal

1 The proposed replacement windows, by reason of insufficient information and detailing, is not considered a like-for-like replacement and would result in less than substantial harm to the Rush Common and Brixton Hill Conservation Area, which is not outweighed by any public benefits or heritage benefits. The proposals would thereby fail to preserve and enhance the character and appearance of the Rush Common and Brixton Hill Conservation Area and is therefore contrary to Policies Q5, Q11 and Q22 of the Local Plan (2021) and the Supplementary Planning Document on Lambeth Design Guide (2023) and fails to accord with paragraph 208 of the

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PO Box 80771
London
SW2 9QQ

Telephone 020 7926 1180
www.lambeth.gov.uk
planning@lambeth.gov.uk

NPPF.

Notes to Applicants:

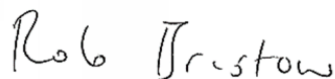
In dealing with this application the Council has acted in line with the National Planning Policy Framework to work with the applicant in a positive and proactive manner. The Council has made available on its website the policies and guidance provided by the Lambeth Local Plan 2020-2035 (September 2021) and its supplementary planning documents. We also offer a full pre-application advice service in order to ensure that the applicant has every opportunity to submit an application that's likely to be considered acceptable.

However, where an applicant submits an application that's considered unacceptable, it's not always possible for the Council to seek amendments during the course of the application to make the proposals acceptable. This can be the case where the applicant has chosen to submit an application that's directly contrary to clear advice provided by the Council, or where the amendments that would be required to make the proposals acceptable would be so significant as to require a further public consultation that would cause the application to exceed its statutory deadline.

1. Paragraph 38 of the NPPF requires Local Authorities to approach decision making in a positive way, to approve applications for sustainable development where possible and to work proactively with applicants to secure development that improves the economic, social and environmental conditions of the area. In this instance the application was considered to be in conflict with Lambeth's Local Plan and the NPPF, and a decision was issued providing clear and transparent reasons for refusal.

2. The applicant is advised to review the delegated report for Officers' assessment and please review the Lambeth Design Code SPD Part 4.

Yours sincerely



Rob Bristow

Director - Planning and Sustainability
Growth and Environment Directorate

Date printed: 22nd June 2026

INFORMATION FOR APPLICANTS GRANTED PLANNING PERMISSION SUBJECT TO CONDITIONS, OR WHERE PERMISSION HAS BEEN REFUSED.

General Information

This permission is subject to due compliance with any local Acts, regulations, building by-laws and general statutory provisions in force in the area and nothing herein shall be regarded as dispensing with such compliance or be deemed to be a consent by the Council there under.

Your attention is drawn to the provisions of the Building Regulations 1985 and related legislation which must be complied with to the satisfaction of the Council's Building Control Officer, PO Box 80771, London SW2 9QQ.

The Council's permission does not modify or affect any personal or restrictive covenants, easements, etc., applying to or affecting the land or the rights of any person entitled to the benefits thereof.

STATEMENT OF APPLICANT'S RIGHTS ARISING FROM THE REFUSAL OF PLANNING PERMISSION OR FROM THE GRANT OF PERMISSION SUBJECT TO CONDITIONS.

Appeals to the Secretary of State

If the applicant is aggrieved by the decision of the local planning authority to refuse permission or approval for the proposed development or to grant permission or approval subject to conditions, he may appeal to the Secretary of State in accordance with Section 78 of the Town and Country Planning Act 1990 within six months from the date of this notice. Appeals must be made on a form which is obtainable from The Planning Inspectorate, Room 3/13 Temple Quay House, 2 The Square, Temple Quay, Bristol BS1 6PN. Alternatively an Appeal form can be downloaded from their website at <https://www.gov.uk/appeal-planning-decision>. The Secretary of State has power to allow longer period for the giving of a notice of appeal but he will not normally be prepared to exercise this power unless there are special circumstances which excuse the delay in giving notice of appeal. The Secretary of State is not required to entertain an appeal if it appears to him that permission for the proposed development could not have been granted by the local planning authority, or could not have been so granted otherwise than subject to the conditions imposed by them, having regard to the statutory requirements, to the provisions of the development order, and to any directions given under the order.

Purchase Notice

If permission to develop land is refused or granted subject to conditions, whether by the local planning authority or by the Secretary of State for the Environment, and the owner of the land claims that the land has become incapable of reasonably beneficial use in its existing state and cannot be rendered capable of reasonable beneficial use by the carrying out of any development which has been or would be permitted, he may serve on the London Borough of Lambeth a purchase notice requiring that Council to purchase his interest in the land in accordance with the provisions of Section 137 of the Town and Country Planning Act 1990.

Compensation

In certain circumstances, a claim may be made against the local planning authority for compensation, where permission is refused or granted subject to conditions by the Secretary of State for the Environment on appeal or on a reference of the application to him. The circumstances in which such compensation is payable are set out in Section 120 and related provision of the Town and Country Planning Act 1990.